



RESTRICTED

Name of Employee : _____
Address : _____
Social Security No. : _____

Non-Disclosure Agreement (NDA)

The above-named employee (the “Employee”) hereby agrees to the following terms and conditions as a consideration of his/her employment with Innodata India Private Limited (the “Company”):

1. **Confidentiality and Non-Disclosure.** All information and materials, in whatever format, disclosed to the Employee, directly or indirectly, by the Company or its affiliates, and all information and materials, in whatever format, which the Employee has otherwise obtained or discovered as a result of his/her employment by the Company or in the performance of his/her services under his/her employment contract with the Company will be considered sensitive, confidential and proprietary (“Confidential Information”). Confidential Information may include, without limitation, information and materials belonging to the Company, information and materials belonging to the Company’s affiliates, and information and materials belonging to third parties. The Employee agrees to maintain the Confidential Information in the strictest confidence, including but not limited to, the maintenance of such Confidential Information as if it were his/her trade secret. The Employee will not disclose to any person or entity, without the written consent of the Company, any Confidential Information, and will not directly or indirectly use any such Confidential Information other than as directed by the Company, and then only in furtherance of the Employee’s performance of the services pursuant to his/her specific job assignment. The Employee may not use Confidential Information to benefit himself/herself or any third person or party, or to compete with the Company or any third party. All such Confidential Information shall be and shall remain the property of the Company, and shall be subject at all times to the discretion and control of the Company.

Information shall not be deemed Confidential Information when the same is or has become available to the public through no act or omission on the Employee’s part.

The Employee may disclose Confidential Information where required by law, provided that he/she first (i) gives the Company not less than fifteen (15) days prior written notice of such disclosure; (ii) affords to the Company the reasonable opportunity to obtain protective or similar orders, where available; and (iii) takes all reasonable and lawful actions to obtain confidential treatment of such disclosure.

Upon termination or expiration of his/her employment contract with the Company, or earlier upon the request of the Company and at the Company's discretion, the Employee shall either immediately return or destroy any and all Confidential Information and copies (whether in note, memo or other document form or on video, audio or computer tapes or discs or otherwise). Upon request of the Company, the Employee shall certify in writing of his/her compliance with this requirement.

Employee acknowledges and agrees that any failure by the Employee to comply with the provisions set forth in this Section 1 will result in disciplinary action, up to and including discharge, and may result in legal liability.

2. **Personal Information.** "Personal Information" refers to information relating to an identified or identifiable individual, and includes information which may be used in its own regard or in combination with other factors to ascertain the identity of a particular individual. Personal Information includes, without limitation, data defined as "personal data" and "sensitive personal data" pursuant to the Data Protection Act 1988 (the "DPA"), and data defined as "individually identifiable health information" pursuant to the Health Insurance Portability and Accountability Act of 1996 ("HIPAA").

All Personal Information, in whatever format, disclosed to the Employee, directly or indirectly, by the Company or its affiliates, and all Personal Information, in whatever format, which the Employee has otherwise obtained or discovered as a result of his/her employment by the Company or in the performance of his/her services under his/her employment contract with the Company will be considered Confidential Information.

In addition to the restrictions on the use and disclosure of Confidential Information as set forth in Section 1 above, Employee acknowledges and agrees that: (a) Employee will only collect, maintain, use, process and transfer Personal Information on behalf of the Company, and solely for the purpose directed by the Company; (b) that any processing of Personal Information by the Employee must be fair and lawful, and consistent with any obligations the Company has to third parties, including, without limitation, the Company's clients; (c) Employee will take all appropriate legal, organizational, and technical measures, in accordance with Company policies, to protect the confidentiality of Personal Information, and to protect Personal Information against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure, use or access, and against all other unlawful forms of processing, keeping in mind the nature of such information; (d) Employee will notify his or her immediate supervisor of any errors or inaccuracies in the Personal Information upon becoming aware of such errors or inaccuracies, whether or not caused by the Employee; (e) Employee will promptly notify his or her immediate

supervisor if Employee receives any requests from an individual with respect to the Personal Information, including, without limitation, information access, rectification and “opt-out” requests, and shall not respond to any such requests unless expressly authorized to do so by the Company’s Data Protection Officer; and (f) Employee will keep a record of any responses to requests from individuals made by Employee with respect to the Personal Information, and upon request from the Company will provide a copy of such records to the Company.

Employee acknowledges and agrees that any failure by the Employee to comply with the provisions set forth in this Section 2 will result in disciplinary action, up to and including discharge, and may result in legal liability.

3. **Intellectual Property Rights.** The Employee acknowledges and agrees that all information, documents, reports and other tangible and intangible materials which he/she will prepare or has prepared as a result of his/her employment with the Company or in the performance of his/her services under his/her employment contract with the Company and at whatever stage, work-in-progress (collectively, the “Materials”) are and shall be the exclusive property of the Company, including without limitation, any copyright and other intellectual property rights associated therewith and the Employee hereby assigns all right, title and interest in and to the Materials to the Company.

The parties hereby agree that these Materials shall be considered copyrighted materials under the appropriate copyright laws and the Company shall have the right (but not the obligation) to register the copyright for the Materials in the name of the Company. The Company shall likewise have the right to further assign its copyright over the Materials.

At any time, from time to time and upon the reasonable request of the Company or its counsel, and at the expense of the Company, Employee shall execute, acknowledge and deliver, or cause to be done, executed, acknowledged and delivered (a) all such further deeds, assignments, transfers and conveyances as may be required for the better assigning, transferring, granting, conveying and confirming to the Company and its successors and assigns, or for aiding and assisting in collecting and reducing to possession, any or all of the intellectual property rights in and to the Materials; and (b) such instruments of assignment, transfer, conveyance, endorsement, direction or authorization and other documents to perfect title of the Company and its successors and assigns to the Materials or otherwise to effectuate the purposes of this Agreement.

4. **Inventions.** The Employee acknowledges and agrees that any inventions, designs, improvements, programming, software (including software coding and software changes or upgrades), writings and discoveries (collectively, the “Inventions”) conceived by the Employee during the period of the Employee’s employment with the Company as a result of his/her employment by the Company or in the performance of his/her services under his/her employment contract with the Company shall be property of the Company regardless whether patent, trademark or copyright protection is available for the Inventions and regardless whether the Company applies for patents relating thereto or seeks to register

any trademark or copyright. The Company shall likewise have the right to further assign its rights in and to the Inventions.

At any time, from time to time and upon the reasonable request of the Company or its counsel, and at the expense of the Company, Employee shall execute, acknowledge and deliver, or cause to be done, executed, acknowledged and delivered (a) all such further deeds, assignments, transfers and conveyances as may be required for the better assigning, transferring, granting, conveying and confirming to the Company and its successors and assigns, or for aiding and assisting in collecting and reducing to possession, any or all of the Inventions; and (b) such instruments of assignment, transfer, conveyance, endorsement, direction or authorization and other documents to perfect title of the Company and its successors and assigns to the Inventions or otherwise to effectuate the purposes of this Agreement.

5. **Survival.** The terms of this Agreement shall survive the termination or expiration of the Employee's employment with the Company.

6. **Injunctive Relief.** The Company will suffer irreparable harm in the event of breach of any of the terms of this Agreement. In such event or the threat of any such event, the Company will be entitled to injunctive relief, specific performance and other available legal and/or equitable remedies.

7. **Governing Provisions.** In the event of any inconsistencies between the provisions of this Agreement and the provisions of any agreement previously signed by the Employee with the Company, the more restrictive provision (as benefiting the Company) will govern and control.

8. **Governing Law and Venue.** This Agreement shall be governed by and construed under the laws of "The Indian Contract", Act 1872, regardless of the laws that might otherwise govern under applicable choice-of-law principles. The parties hereto consent to the jurisdiction of the courts of Dist. Gautam Buddh Nagar, with respect to any legal proceedings that may result from a dispute as to the interpretation or breach of any of the terms and conditions of this Agreement.

IN WITNESS WHEREOF, the Employee has signed this Agreement on _____ at Noida.

Signature of Employee

Date: _____